

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: September 7, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER PARTIALLY GRANTING AMENDED MOTION FOR EXTENSION OF SCHEDULING ORDER

On August 16, 2023, Respondent SM Line Corporation filed a motion seeking a 60-day extension to the June 2, 2023 Scheduling Order. The motion describes Respondent's efforts to manually review and redact 58,615 potentially responsive documents, approximately half of which are completed. On August 22, 2023, the parties attended a status conference pursuant to Rule 201(i) to discuss the progress and pace of Respondent's document production, the likely deponents and deposition schedule, and the use of expert witnesses. Given the apparently slow progress, the lack of detail in the motion, and the length of the requested extension, the purpose of the conference was to ensure that the parties were actively planning to complete discovery in the time requested, rather than simply attempting to accommodate an *ad hoc* approach. At the end of the conference, I directed the parties to discuss a plan and directed Respondent to submit an amended motion including these details. The amended motion does not provide much additional detail regarding a specific plan to complete discovery. Complainant opposes the motion, noting that it met its own obligation to timely produce documents, that Respondent's production is unreasonably dilatory, and that Respondent has not clarified its plan for completing discovery in a reasonable time.

Given the volume of documents remaining to be produced, counsel's representations regarding the pace of review, and the difficulties encountered in the review process, I am satisfied that good cause exists to extend the schedule to permit Respondent the time it requests to complete its document production. I note that Respondent represented in the amended motion that it agreed to "prioritize the production of certain documents to Complainant and to continue producing the remaining documents on a rolling basis." Am. Mot., p.3, fn 1. If the agreed-to rolling productions do not occur, and the parties are unable to resolve the issue, they must jointly contact judges@fmc.gov and I will schedule a status conference.

Respondent represents that the parties intend to depose "approximately 20" witnesses, and on that basis now seeks an extra month to complete fact depositions. While that is a large number of witnesses, the motion does not indicate that the depositions are anticipated to be

lengthy, that counsel have been unsuccessful in scheduling them in a narrower window, or that counsel or the witnesses are unavailable for any reason. I do not find that Respondent has provided sufficient information from which to conclude there is good cause to expand the time for fact depositions.

The proposed schedule for expert discovery ends nearly two months after fact depositions are complete. The amended motion does not provide any reason, other than a general reference to “the holiday season,” for such a protracted schedule. But since the parties have represented that they each have multiple experts, it appears the original projection of one week to complete expert discovery is simply unrealistic. Given the number of experts, I find there is good cause to grant an additional two weeks to complete expert discovery.

The amended motion also proposes to expand the time to file Complainant’s reply brief, without explanation. I do not find that there is good cause to grant this request.

Accordingly, Respondent’s Amended Motion for Extension of Scheduling Order is **GRANTED IN PART**. The parties are hereby **ORDERED** to follow this revised schedule:

October 17, 2023	Complete document production
November 28, 2023	Complete fact depositions
December 1, 2023	Expert discovery begins
December 22, 2023	Close of all discovery
January 22, 2024	Complainant’s brief, proposed findings of fact, and appendix
February 21, 2024	Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
March 6, 2024	Complainant’s reply brief and responses to proposed findings of fact

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Alex M. Chintella
Administrative Law Judge